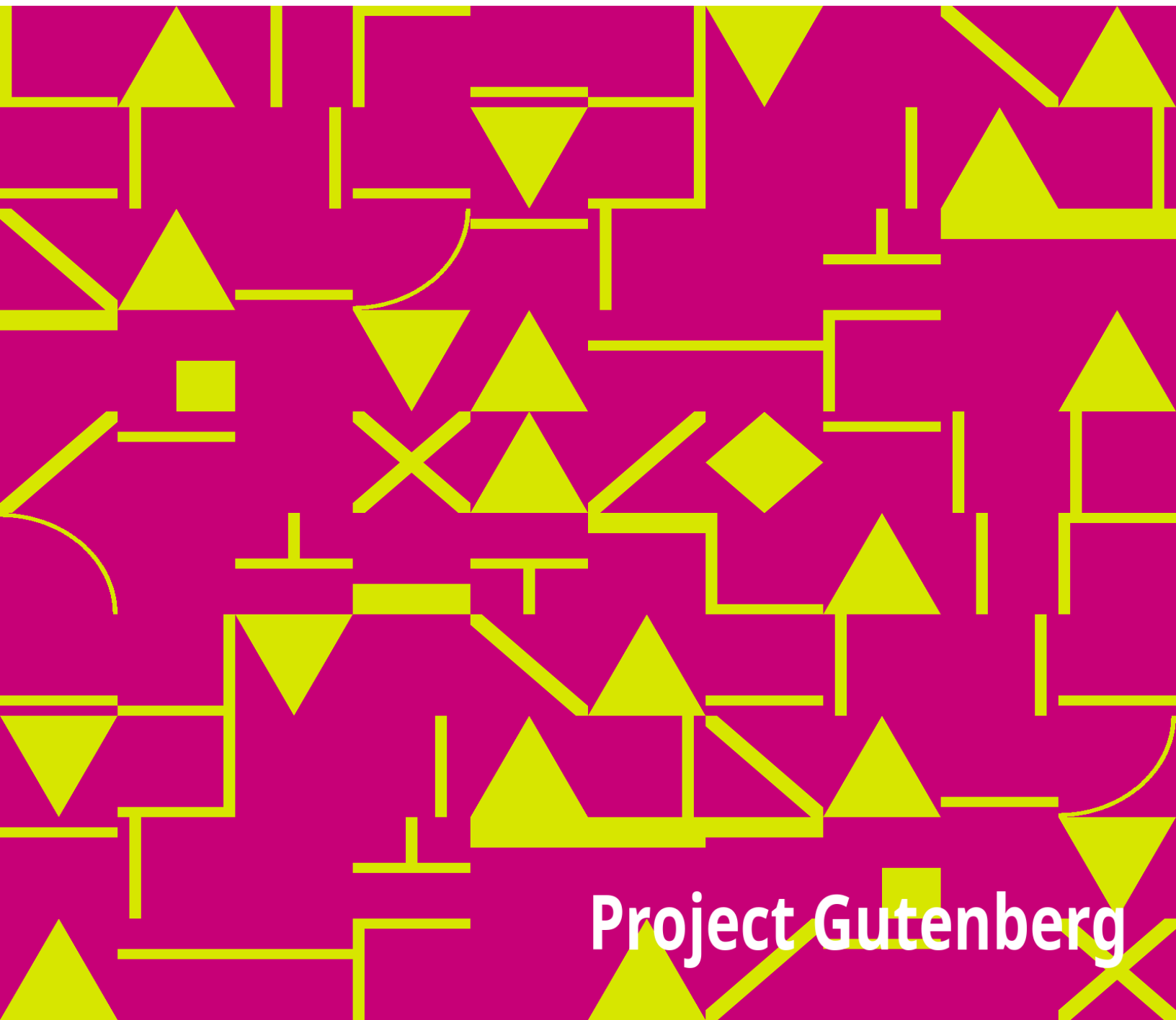


Labor's Martyrs: Haymarket 1887, Sacco and Vanzetti 1927

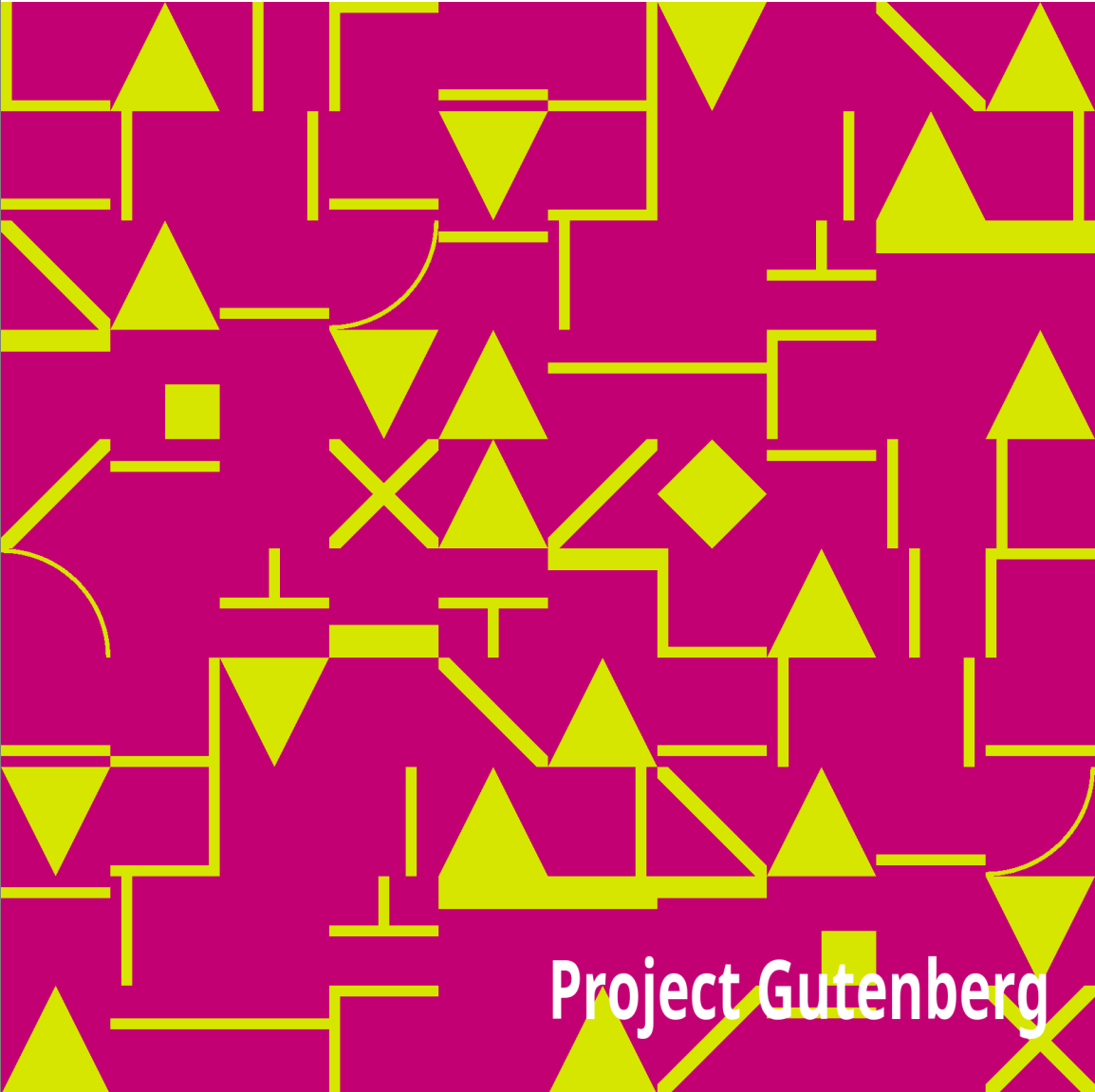
Vito Marcantonio

The background of the lower half of the page is a vibrant magenta color. Overlaid on this is a complex, abstract pattern of bright yellow geometric shapes and lines. The pattern includes various triangles (some pointing up, some down), squares, rectangles, and intersecting lines that create a sense of movement and depth. Some shapes are solid yellow, while others are outlined in yellow. The overall effect is a modern, graphic design that contrasts sharply with the historical subject matter of the text above.

Project Gutenberg

Labor's Martyrs: Haymarket 1887, Sacco and Vanzetti 1927

Vito Marcantonio

A decorative geometric pattern consisting of various yellow shapes (triangles, squares, rectangles, lines, and arcs) arranged in a complex, overlapping manner on a magenta background.

Project Gutenberg

**THE PROJECT GUTENBERG EBOOK OF LABOR'S MARTYRS:
HAYMARKET 1887, SACCO AND VANZETTI 1927**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Labor's Martyrs: Haymarket 1887, Sacco and Vanzetti 1927

Author: Vito Marcantonio

Author of introduction, etc.: William Z. Foster

Release date: February 1, 2004 [eBook #11009]

Most recently updated: October 28, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/11009

*** START OF THE PROJECT GUTENBERG EBOOK LABOR'S
MARTYRS: HAYMARKET 1887, SACCO AND VANZETTI 1927 ***

LABOR'S MARTYRS

HAYMARKET

1887

SACCO AND VANZETTI
1927

BY VITO MARCANTONIO

INTRODUCTION BY WM. Z. FOSTER

INTRODUCTION

BY WILLIAM Z. FOSTER

On November 11, 1937, it is just fifty years since Albert R. Parsons, August Spies, Adolph Fischer, George Engel and Louis Lingg, leaders of the great eight-hour day national strike of 1886, were executed in Chicago on the framed-up charge of having organized the Haymarket bomb explosion that caused the death of a number of policemen. These early martyrs to labor's cause were legally lynched because of their loyal and intelligent struggle for and with the working class. Their murder was encompassed by the same capitalist forces which, in our day, we have seen sacrifice Tom Mooney, Sacco and Vanzetti, the Scottsboro boys, McNamara, and a host of other champions of the oppressed.

Parsons and his comrades were revolutionary trade unionists, they were Anarcho-Syndicalists rather than Anarchists. In the early 'eighties, when they developed their great mass following, the mass of the workers were just learning to organize to resist the fierce exploitation of a ruthless capitalism. The great eight-hour strike movement led by the "Chicago Anarchists" gave an enormous impulse to trade union organization everywhere and it was for this that the employing interests had them hanged. When, for example, the older Chicago unions nowadays go out on parade on Labor Day, banner after banner bears the historic date of 1886. Indeed, the A. F. of L. was practically established nationally at that time. Although the A. F. of L. had been founded in 1881, it never got a real hold among the masses until the big strike movement of 1886, which established the unions in man pew trades and industries and brought about the reorganization and renaming of the A. F. of L.

In many respects 1937 bears a kinship to 1886. Once again labor is making a vast surge forward, but on a much higher political level. In 1886, and the years following, the best that the working class could do in the way of organization was to produce the craft union movement, which, notwithstanding all its failings, was an advance in liveability at least, over the amorphous and confused Knights of Labor. But now, the working class, grown stronger, more experienced and more ideologically developed, has given birth to the C.I.O. movement, with its industrial unionism, trade union democracy, organized political action and generally advanced conception of the workers' struggle. The militant trade union movement of today, heading towards a broad People's Front, is the direct lineal descendant of the great strike movement of the 1886 Chicago martyrs.

Not only has labor matured very much in the fifty years that have passed since 1886, but so also has the capitalist system that gives it birth. In 1886 American capitalism was young, strong and growing. It had before it a long period of unparalleled expansion, during which the workers became afflicted with many illusions about the possibilities of prosperity under capitalism. Now, however, American capitalism, like the world capitalist system of which it is a part, has exhausted its constructive role of building the industries. It is now obsolete and gradually sinking into decay. Industrial crises follow each other with increasing severity and the masses are becoming more and more pauperized. The growth of fascism and war is the attempt of this outworn capitalist system to keep in existence although history has imperatively summoned it to leave the stage and to make way for the next order, socialism.

The modern working class, although it has not learned all the needed lessons of the situation in which it finds itself, is nevertheless rapidly becoming free from capitalist illusions and is reorganizing itself accordingly, industrially and politically. Of this renaissance, the C.I.O. is the greatest mass expression.

The Haymarket martyrs were bold pioneer fighters for socialism and they paid with their lives for their devotion and clear-sightedness. Although they sleep all these years in Waldheim Cemetery, their work was not in vain and they are not forgotten. In keeping green the memories of these proletarian heroes, the International Labor Defense, the Communist Party and other progressive and revolutionary organizations are preserving one of the most glorious of all American revolutionary traditions. The lives of Parsons, Fischer, Engel, Spies and Lingg, and Sacco and Vanzetti, must be made more than ever the inspiration of the proletarian youth. We must indeed realize in life the noble last words of Spies, spoken as he stood on the gallows with the hangman's noose around his neck:

"There will come a time when our silence will be more powerful than the voices you are strangling today."

LABOR'S MARTYRS

BY VITO MARCANTONIO

PRESIDENT, INTERNATIONAL LABOR DEFENSE

"These are my ideas. They constitute a part of myself. I cannot divest myself of them, nor would I if I could. And if you think that one can crush out these ideas that are gaining ground more and more every day; if you think you can crush them out by sending us to the gallows; if you would once more have people suffer the penalty of death because they have dared to tell the truth--and I defy you to show that we have told a lie--if death is the penalty for proclaiming the truth, then I will proudly and defiantly pay the costly price."-- (August Spies, just before he was sentenced to death on October 9, 1886.)

The man who spoke these words had no illusions. He knew that the court he was facing was a hostile court, an enemy court, a court determined to stamp out all that he stood for and believed in. He knew, also, that the truth of which he spoke was much bigger than the little man who sat in a black gown waiting for him to finish so that he could pronounce the brutal words that would mean his death on the gallows. He knew that the movement he represented was bigger than the forces which were trying to crush it and that it would survive.

Survive it did--to become one of the most powerful factors on the American scene today, one of the most vital factors in the extension and preservation of democracy and the rights for which he laid down his life.

And why should we venerate the memory of this man and the other victims of the Haymarket tragedy? Not simply because they were brave men. Not simply because they had the courage of their convictions and did not weaken in the face of death. But because

their fight is still going on today, strengthened by their magnificent pioneer work, because of the foundation they helped lay for the American labor movement of the present day.

Back in 1886, that movement was still almost in its infancy. Noble attempts to build it had been made in the days of our Revolutionary forefathers. But all they did was to lay the groundwork, to drive in the first piles on which the rest of the structure could be built. The man of the early 'eighties of the last century began the actual construction.

One of the main issues around which they rallied the working people of this country was the fight for the eight-hour day. Albert Parsons, only 36 when he was executed, had spent more than ten years actively organizing American workers. He was a printer, a member of the powerful International Typographical Union which even in those days had over 60,000 members. He was a member of the Knights of Labor, the first great trade union center in American history. He was one of the outstanding spokesmen of the eight-hour day. An able orator, he toured the United States, soap-boxing, lecturing and recruiting supporters for the movement.

By his side was August Spies, a German worker from the metal trades industry, who carried the fight to the Central Trades Body of Chicago to which he was a delegate. Around them were many others: Adolph Fischer, George Engel who came to America as so many of our immigrant forefathers did because he believed "*he would live a free man, in a free country.*" Oscar Neebe, Samuel Fielden, Michael Schwab and young Louis Lingg, only twenty-three at the time of his death.

Their efforts bore fruit. The movement for the eight-hour day gained momentum. Union after union discussed the problem and went on record in favor of fighting for it, until finally the slogan became: General Strike for the eight-hour day. The date set was May 1, 1886, a day that has now become the international fighting holiday of labor.

In Chicago, the May Day strike was a great success. Those who remember it and took part in it tell us that thousands of workers filled

the streets. Some paraded, others gave out handbills, others went in committees from factory to factory calling the workers out on strike. Despite all the efforts of a hostile press to whip up hatred for the workers, to alienate the middle class, to spread the fear of disorder and raise the bogey of revolution (much as Mayor Shields of Johnstown so unsuccessfully tried to do when he attempted to introduce the menace of vigilantism into Johnstown, Pa., during the recent steel-strike with his black helmeted monkeys), the day passed in absolute peace.

One Chicago daily, the *Mail*, actually carried an editorial addressed directly to Parsons and Spies. It called them every vile name that the censorship would pass and stated that any disorder which might occur should be laid at their door.

In many industries the workers decided to stay out on strike after May 1. One of these was the McCormick Reaper Plant in Chicago. On May 3, August Spies was invited by the strike committee to address the pickets at the factory gate. Just as he finished speaking, the police charged down upon the assembled workmen with clubs and guns. First reports had it that six were killed outright and scores wounded. Chicago papers were quick to point out that *only* two had lost their lives!

Spies rushed back to the office of the German radical paper, the *Arbeiter-Zeitung*, of which he was the editor. Hastily he wrote up a leaflet denouncing the police attack, calling for revenge "*if you are the sons of your grandsires who have shed their blood to free you.*" It ended with a dramatic call to arms, which Spies upon re-reading ordered stricken out. The typesetter left it in and at the Haymarket trial which followed it provided the prosecution with some of its most valuable ammunition in firing the hatred of the jury.

That same evening a committee of trade unionists decided to hold a protest meeting in the Haymarket Square in Chicago, on the night of May 4. Several thousands people attended. Spies opened the meeting and stated its purpose: to discuss the question of the eight-hour day and to protest the police shootings at the McCormick plant.

Parsons, who had just returned to the city from a speaking tour was hurriedly sent for and rushed over with his wife, Lucy Parsons, and their two children, to lend a hand.

The speakers stood on an empty wagon for a platform and addressed the crowd for about two hours. Reporters covering the meeting, instructed to take down only the "most inflammatory" remarks made, testified from the witness stand at the subsequent trial as to the mildness of the speeches.

In the audience was the mayor of Chicago, Carter Harrison, who was quickly satisfied by its peaceful nature and went in person to Police Captain Bonfield with instructions to call off police reserves and send his men home. They would not be needed.

Just as the last speaker, Samuel Fielden, was saying, "*In conclusion----*," a good part of the crowd had been driven home by rain which began falling when he started his speech--a squad of armed police descended upon the Haymarket Square. Mumbling orders for the crowd to disperse, they fell upon the assembled men and women with clubs and guns.

At that moment, someone--to this day unknown--threw a bomb into the midst of the meeting, killing one policeman outright and wounding scores of people.

These are the facts of the Haymarket meeting and the events which lead up to it. What the press made of it was the prelude to one of the rawest frame-up trials in American history.

All the leading radicals in the city were rounded up and arrested. Many more were indicted in their absence and heavy rewards were posted for their capture. Among these was Albert Parsons, who had left before the end of the meeting, and had fled to a safe hiding place when the man-hunt began. The newspapers from coast to coast, our worthy *New York Times* not excepted, howled for their blood, raved about an Anarchist plot to blow up Chicago, seize the government,

murder, arson, pillage, rape--the whole program which William Randolph Hearst has made only too familiar to the American public.

On June 21, 1886, the trial began. Eight men were singled out as victims--August Spies, Albert Parsons, George Engel, Adolph Fischer, Louis Lingg, Samuel Fielden, Michael Schwab and Oscar Neebe. Efforts to postpone it until the hysteria had died down failed. The men who came forward to defend the Haymarket victims were conservative lawyers headed by one, Captain Black. Convinced of their innocence and enraged by the efforts to railroad them to the gallows, they did their best to provide adequate defense. But they had illusions about the justice available in the American courts. They planned, for instance, to have Parsons walk into the courtroom and surrender himself, asking for a fair trial! This they were sure would make a "good impression" on the judge and jury!

The judge, Judge Gary, gave one of the most shameful performances that this country has ever seen, and it has seen plenty from its judges. He helped choose the jury---to make sure it would convict. He questioned men who stated they had already formed an opinion about the case, had definite prejudices against Anarchists, Socialists and all radicals, were not certain they could render an impartial verdict--and ruled that they were not disqualified! He said from the bench that "*Anarchists, Socialists and Communists were as pernicious and unjustifiable as horse thieves,*" and, finally, in charging the jury, that even though the state had not proved that any of the eight men on trial had actually thrown the bomb, they were nevertheless guilty of a conspiracy to commit murder.

The bigoted speeches of the prosecutor Grinnell, and his aides, are equalled only by the speeches of the prosecution in the Mooney case, the Herndon case, the Scottsboro case. In other words, they established a fine precedent for all anti-labor prosecutions to follow.

The trial lasted 63 days. The jury was out only three hours. That's all the time they needed to examine the mountain of evidence presented in those months. It is true that most of it was perjured, framed-up evidence prepared by the prosecution, wild-eyed stories

of the men leaping from the wagon which was really a barricade, flaming pistols aimed at the police, etc. The rest was quotations from their writings and speeches made years before the Haymarket meeting was ever dreamed of. The verdict was a foregone conclusion: death for all but Oscar Neebe and for him 15 years in the penitentiary.

The judge thanked the jury from the bench and announced that there were carriages outside the door waiting to take them home. The press of the entire nation congratulated Chicago upon having such upright and courageous citizens to serve on juries. Chicago papers collected a purse of \$100,000 to divide among them as a reward for work well done.

The case was appealed to the Illinois State Supreme Court which, on March 18, 1887, found no errors on which it could reverse the verdict. This despite affidavits proving that the jury was chosen from a carefully selected panel of enemies of the men by the bailiff and the judge and many other flagrant violations of civil rights, too many to enumerate.

And then came the appeal to the United States Supreme Court. Old as they are, none of the present incumbents were then sitting on the bench. But their worthy forerunners were equally reactionary. They found no constitutional grounds for reversal! Of course not, even though the right of free speech and assembly had been trampled underfoot at the Haymarket Square, the right to a fair trial made into a cruel farce.

On November 11, 1887, Albert Parsons, August Spies, Adolph Fischer and George Engel were led out to the gallows. At the last moment, yielding to the terrific pressure of protest which had been developed by the defense in the last months, and a great wave of general sympathy with the men throughout the country, Governor Oglesby commuted the sentences of Fielden and Schwab to life imprisonment. Two days before the execution--when the defense committee had mobilized a great movement in Chicago--tables for signing petitions to the governor had been set up in the city streets,

the able police of Chicago, worthy ancestors of those police who murdered eleven steel strikers at the Republic plant on Memorial Day, 1937, suddenly discovered a bunch of "bombs" in the jail where the men were held. On the next day they announced that Louis Lingg had committed suicide by blowing his own head off with a small bomb!

Hitler used the Reichstag fire. Chicago used "bombs."

The men died bravely, like the heroes that they were. Spies' last words spoken on the gallows were prophetic: *"The day will come when our silence will be more powerful than the voices you are throttling today."*

He was right, righter than he knew. That silence is making itself heard in the auto factories of Michigan, in the steel mills of Pennsylvania and Ohio, on the docks, in the mines, in textile factories. The eight-hour day is a reality. The defense of the rights of labor is a reality. The great movement for industrial unionism and democracy which they dreamed of is a reality--in the C.I.O.

They did not die in vain. Taught by the lessons of the Haymarket tragedy, such an organization as the International Labor Defense has been built by the workers and progressive people of America, to stand guard and prevent such legal murders today. Tom Mooney is still alive, J. B. McNamara and Warren Billings; Angelo Herndon is free, four Scottsboro boys are free--though all were threatened by the same fate as the victims of the Haymarket martyrs. Reaction still takes a heavy toll of victims, but it must reckon with the might of organized, united mass defense represented and organized by the I.L.D. For example, the Nine Old Men who have made the United States Supreme Court the stronghold of reaction with the same callousness as their predecessors, arrogantly refused to review the appeal in the case of Haywood Patterson, one of the innocent Scottsboro boys. But the fight goes on, until all the remaining five are free.

We are dedicated to the cause--their cause--of freedom and democracy, to the struggle for justice and defense of the rights and liberties of the people.

There are two other labor martyrs who must be honored at the same time as the Haymarket heroes. The tenth anniversary of their death coincides with the fiftieth anniversary of the former in this year of 1937.

Again let us listen to the words of one who faced his doom:

"I am suffering because I am a radical, and indeed I am a radical; I have suffered because I was an Italian, and indeed I am an Italian; I have suffered more for my family and for my beloved than for myself; but I am so convinced to be right that you could execute me two times, and if I could be reborn two other times I would live again to do what I have done already."

(Bartolomeo Vanzetti, just before he was sentenced to death on April 10, 1927.)

To me those words are particularly poignant. For I am an Italian, and proud to be of the same people that produced such a great spirit as Vanzetti, the descendant of Garibaldi, the forerunner of those heroic anti-fascist brothers who are today fighting Fascism and Mussolini in Italy and in Spain.

Nicola Sacco and Bartolomeo Vanzetti were poor Italian workers. Both came to this country like all our countrymen in search of peace and work and plenty. Both found only hard work and hard knocks. Sacco was a shoe-worker. Vanzetti had followed many trades after his arrival here in the summer of 1908. He worked in mines, mills, factories. Finally he landed in a cordage plant in Plymouth, Massachusetts. That was the last factory job he held. For here, as in all the others, he talked union and organization, and organized a successful strike. After that, he was blacklisted for good and had to make a living peddling fish to his Italian neighbors in the little town known as the cradle of liberty.

During the years 1919 and 1920 two phenomena made their appearance in the state of Massachusetts. One was national, the other local. The first was Mitchell Palmer's red delirium which caused him to hunt radicals with the same zeal but much more frenzy than the old Massachusetts witch hunters in every corner of the land. The second was a wave of payroll robberies obviously executed by a skilled and experienced gang of bandits.

In April, 1920, both these currents crossed the paths of Sacco and Vanzetti. Their friend Andrea Salsedo was arrested by Palmer's "heroes," tortured, held incommunicado for 11 weeks and thrown from the eleventh story of the Department of Justice office in New York City to his death. This happened on May 4, 1920. Early in April the Slater and Merrill Shoe Factory paymaster was murdered in Bridgewater, Massachusetts, and some \$15,000 carried off. On May 5, Sacco and Vanzetti were arrested in South Braintree, Massachusetts, and held on suspicion of being the guilty bandits. After he nabbed them, Chief of Police Stewart discovered, with the aid of Department of Justice agents, that he had two dangerous radicals marked for "*watching*" in Department files in Washington.

What happened after that, though it lasted seven long and torturous years, is fairly familiar to the American people. It ended ten years ago in the electric chair at Charlestown Jail in Massachusetts. The finest minds in the world, the greatest masses of workers and their friends, made their protest known to the American government, through its embassies, before its government buildings, in the streets and roadways of America.

But Judge Webster Thayer, who bragged, "*Did you see what I did to those anarchistic bastards,*" disregarded all the evidence proving their innocence, poisoned the minds of the already hatred-ridden jury against them, with speeches about the soldier boys in France, the flag, "consciousness of guilt," the perfidy of "foreigners." The witnesses for the defense proved the innocence of Sacco and Vanzetti beyond the shadow of a doubt. Italian housewives told of buying eels from Vanzetti on the day of both crimes with which he

was charged (another payroll robbery committed on Christmas eve, 1919, was thrown in for good measure against him, to secure that conviction first and bring him to trial for murder as a convicted payroll robber). Sacco had an official from the Italian Consulate in Boston to testify for him. He had been in Boston on the day of the Bridgewater crime enquiring about a passport to Italy for himself, his wife and child. The official couldn't forget him, because instead of a passport photo he brought a big framed portrait of his whole family with him!

Ballistic testimony from an expert who was a state witness was brought to show that the fatal bullet was not Sacco's, but to no avail. New trials were denied. The State Supreme Court upheld the murder verdict. The governor upheld it. He appointed a special commission of professors headed by President Lowell of Harvard, and they upheld it. Four justices of the United States Supreme Court were contacted for a stay of execution. All refused.

On August 22, 1927, Sacco and Vanzetti were legally murdered by the State of Massachusetts. The tragedy of their untimely and cruel death is still an open wound in the hearts of many of us who remember them as shining spirits, as truly great men such as only the lowly of the earth can produce.

We of the International Labor Defense call upon all the progressive people in America today to help us honor their memories by helping us fight the reaction, the bigotry, which brought about their death, by helping us defend and protect the victims of the present and the future.

During the fifty years that have passed since 1887 the toll of victims has grown. But though the road is red with the blood of these martyrs, the triumphant march of labor towards progress and democracy has not been halted. The example of steadfastness which they have set up before us has strengthened us in our determination to carry on the fight in which they lost their lives. On this anniversary, we give our pledge. It shall be done. Reaction, fascism and the terror which it brings in its path shall not pass.

*** END OF THE PROJECT GUTENBERG EBOOK LABOR'S
MARTYRS: HAYMARKET 1887, SACCO AND VANZETTI 1927 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with

almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form,

including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.

- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE

FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any

volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg

Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.